

P. White

Date: *June 30, 2013*

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, 2.2.2, PLANNED DEVELOPMENT – REGULATING PLAN OR DEVELOPMENT MASTER PLAN, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM LI, LIGHT INDUSTRIAL, AND PUD, PLANNED UNIT DEVELOPMENT (COUNTY) TO LI, LIGHT INDUSTRIAL, AND PUD, PLANNED UNIT DEVELOPMENT (CITY) FOR LOT 1, BLOCK 2, SWAN RANCH RAIL PARK, FIRST FILING, LOTS 1 THROUGH 4, AND 6, BLOCK 1, SWAN RANCH RAIL PARK, FOURTH FILING, ALL OF SWAN RANCH RAIL PARK, FIFTH FILING, ALL OF SWAN RANCH RAIL PARK, SEVENTH FILING, A PARCEL OF LAND SITUATED IN A PORTION OF THE NORTH HALF OF SECTION 27, T.13N., R.67W., 6TH P.M., AND PORTIONS OF SECTIONS 14, 15, 22, AND 23, T.13N., R.67W., 6TH P.M. TO BE KNOWN AS SWAN RANCH RAIL PARK, EIGHTH FILING, CHEYENNE, WYOMING, (LOCATED EAST OF AND ADJACENT TO CLEAR CREEK PARKWAY AND NORTH OF AND ADJACENT TO TUNDRA DRIVE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, and Section 2.2.2, Planned Development – Regulating Plan or Development Master Plan, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on July 1, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Sections 2.2.1.d and 2.2.2.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 13 through 18, Block 2, Swan Ranch Rail Park, Eighth Filing, Cheyenne, Wyoming, is hereby changed to LI, Light Industrial.

Section 5. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 2.2.2, Planned Development – Regulating Plan or Development Master Plan, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 2, Swan Ranch Rail Park, First Filing, Lots 1 through 4, and 6, Block 1, Swan Ranch Rail Park, Fourth Filing, all of Swan Ranch Rail Park, Fifth Filing, all of Swan Ranch Rail Park, Seventh Filing, all of Blocks 1 and 3 and Lots 1 through 12, Block 2, Swan Ranch Rail Park, Eighth Filing, and a parcel of land legally described in that certain quit claim deed recorded October 11, 2012, in Book 2299, Page 1351 of the books and records of the Laramie County Clerk and ex-officio register of deeds, Laramie County, Wyoming, is hereby changed to PUD, Planned Unit Development, the Regulating Plan for which is attached hereto and incorporated herein as Exhibit A.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated Swan Ranch II Annexation ordinance with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and upon the official filing of the affiliated Swan Ranch Rail Park, Eighth Filing, final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

Exhibit A

CITY SWAN RANCH RAIL PARK PUD

Regulating Plan for the Planned Unit Development (PUD) of
Lot 1, Block 2, Swan Ranch Rail Park, First Filing, Lots 1 through 4, and 6, Block 1, Swan Ranch Rail
Park, Fourth Filing, all of Swan Ranch Rail Park, Fifth Filing, all of Swan Ranch Rail Park, Seventh
Filing, all of Blocks 1 and 3 and Lots 1 through 12, Block 2, Swan Ranch Rail Park, Eighth Filing, and a
parcel of land situated in a portion of the North Half of Section 27, T.13N., R.67W., 6th P.M.,
Cheyenne, Wyoming

Purpose: The purpose of the Swan Ranch Rail Park PUD is to create an area for specialized commercial and industrial businesses in a rural setting where rail is the predominant reason businesses are locating in the area and where vehicular and pedestrian traffic will be highly impacted by train operations. The following provisions specify those sections of the Cheyenne Unified Development Code (“UDC”) which are deleted or modified with respect to lands within this Planned Unit Development. In all other instances, the provisions of the Cheyenne UDC shall apply.

- A. **Permitted Uses.** The uses permitted in the PUD district are specified in UDC Table 5-1, Zoning District Uses, as either “permitted” or “administrative” or “conditional” under the HI district. The PUD district is intended for uses of very high intensity which should be isolated and buffered in order to protect the community, to ensure unimpeded operation of the uses, and to permit accessory commercial, service or office uses, which cannot readily fit into other general business or mixed-use areas due to the nature or intensity of operations. In addition to the previously described uses in Table 5-1, Zoning District Uses, the following use is permitted within this PUD:

Railroad yards and maintenance buildings.

- B. **District Standards.** The application of UDC Section 5.5.2.d, Lot and Building Standards, to lands within this PUD is modified to read as follows:

Lot and Building Standards:

Lot Area: n/a

Lot Frontage: n/a

Setbacks: All buildings shall be set back at least 25’ from all property lines adjacent to streets.

Building Height: n/a

Maximum coverage: 90%

- C. **Building Design Standards.** UDC Sections 6.7, 6.8 and 6.9 shall not apply to industrial land uses within this PUD.

- D. **Landscaping Standards:**

The application of UDC Section 6.3 to lands within this PUD is modified as follows:

Alternate compliance for landscaping calculation. In lieu of calculations for required landscaping in Section 6.3.4, Point System, Site Plan applications may provide the amount of landscaping required by a Section 6.3.5.b, Level 2 buffer, based on the length of the property’s frontage on adjacent rights-of-way. The landscaping may be installed along rights-of-way to meet the requirement of Section 6.3.3.a, Landscape Setback, as well, or installed elsewhere on the site in addition to the Section 6.3.3.a landscape setback.

For the purposes of determining buffering between property in this PUD and that in all other zone districts, this PUD shall be treated as if zoned HI under Table 6-10, Required Landscape Buffer Levels.

- E. **Parking, Lot Access and Circulation:**

UDC Section 6.2.4.c Bicycle Parking shall not apply within this PUD.